

# OXUS ACQUISITION CORP

## THE 34-DAY SEQUENCE

### *SEC Proxy Statement of 16 January 2024 vs Sworn Evidence in the High Court of 19 February 2024*

BV20D01752 | High Court of Justice, Family Division | MacDonald J | 19–28 February 2024

SEC EDGAR: Oxus Acquisition Corp (CIK 1852973) | Registration No. 333-273967 | Nasdaq ticker: BRLS

*Standalone documentary exhibit to Public Record Day 5 (19 May 2026)*

| Date                   | Event                                                                                                                                                                                                                                                                                                                                                              | Source                                                                                                                                                                                |
|------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>1 June 2022</b>     | Karim Zahmoul appointed to Board of Directors of Oxus Acquisition Corp as independent director. Oxus is a Nasdaq-listed Special Purpose Acquisition Company. Non-Executive Chairman of the Board: Kenes Rakishev. Sponsor: Oxus Capital Pte. Ltd, 63.53% controlled by Kenes Rakishev (Proxy Statement, footnote (2) to the beneficial ownership table at p. 287). | SEC Form 8-K Current Report, 31 May 2022; SEC Form 3 Initial Statement of Beneficial Ownership of Securities, 7 June 2022; SEC Proxy Statement and Prospectus pp. 245–246 and p. 287. |
| <b>7 June 2022</b>     | Oxus Capital Pte. Ltd (the Sponsor, controlled by Kenes Rakishev) transfers 50,000 Founder Shares to Karim Zahmoul. Fair value \$0.02 million / \$0.33 per share. Performance condition: occurrence of a Business Combination. The fair value of the allocated Founder Shares was measured using a Monte Carlo simulation model.                                   | SEC Proxy Statement and Prospectus, p. 340.                                                                                                                                           |
| <b>5 January 2024</b>  | AMENDMENT NO. 4 TO REGISTRATION STATEMENT SIGNED BY KZ. Karim Zahmoul signs Amendment No. 4 to the Registration Statement on Form S-4 (Registration No. 333-273967) as Director of Oxus Acquisition Corp, by Attorney-in-Fact Kanat Mynzhanov under the Power of Attorney executed by Mr Zahmoul on 3 June 2022 (Exhibit 24.1 to SEC Form 8-K).                    | SEC Form S-4, Amendment No. 4, Registration No. 333-273967, SIGNATURES page (II-3), 5 January 2024. Filed with SEC EDGAR. Appended to the SEC Filings Excerpts.                       |
| <b>11 January 2024</b> | AMENDMENT NO. 5 TO REGISTRATION STATEMENT SIGNED BY KZ. Karim Zahmoul signs Amendment No. 5 to the Registration Statement on Form S-4 (Registration No. 333-273967) as                                                                                                                                                                                             | SEC Form S-4, Amendment No. 5, Registration No. 333-273967, SIGNATURES page (II-6), 11 January 2024. Filed with SEC EDGAR. Appended to the SEC                                        |

| Date                   | Event                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Source                                                                                                                                                                                                                                                                                |
|------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                        | Director of Oxus Acquisition Corp, again by Attorney-in-Fact under the same Power of Attorney. The signature page records Mr Zahmoul as Director with date 11 January 2024. The Nasdaq closing price of Class A Shares on the same date is \$11.30 per share, yielding a market value of approximately \$565,000 for the 50,000 shares. The same filing is published as part of the Definitive Proxy Statement issued five days later on 16 January 2024.                                                                                                                                                                                                                     | Filings Excerpts.                                                                                                                                                                                                                                                                     |
| <b>16 January 2024</b> | DEFINITIVE PROXY STATEMENT AND PROSPECTUS filed pursuant to Rule 424(b)(3). Page 30 states the beneficial ownership of the three independent directors, each holding 50,000 Founder Shares, has a total market value of approximately \$1,695,000 based on the Nasdaq closing price of \$11.30 on 11 January 2024. $\$1,695,000 \div 3 =$ approximately \$565,000 per director. Page 340 records that stock-based compensation is recognised at the date the performance condition is met (i.e., upon consummation of a Business Combination). Pages 248–250 record that Karim Zahmoul sits on the Audit Committee, the Nominating Committee, and the Compensation Committee. | SEC Definitive Proxy Statement and Prospectus, 16 January 2024, pp. 30, 248–250, 340. CIK 1852973. Available at SEC EDGAR: <a href="http://www.sec.gov/cgi-bin/browse-edgar?action=getcompany&amp;CIK=1852973">www.sec.gov/cgi-bin/browse-edgar?action=getcompany&amp;CIK=1852973</a> |
| <b>2 February 2024</b> | Oxus extraordinary general meeting of shareholders: Business Combination approved.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | SEC filings, CIK 1852973.                                                                                                                                                                                                                                                             |
| <b>2 February 2024</b> | OXUS EXTRAORDINARY GENERAL MEETING. The Oxus shareholders approve the Business Combination Proposal, the Continuation Proposal, the Governing Documents Proposals, the Share Issuance Proposal, and the Incentive Plan Proposal. Holders of 5,148,643 of the Company's Class A and Class B ordinary shares attended virtually or by proxy, representing 78.58% of the voting power. Seventeen days before the Respondent swore \$0.                                                                                                                                                                                                                                           | SEC Form 8-K filed 5 February 2024, Item 5.07 (Submission of Matters to a Vote of Security Holders). Filed with SEC EDGAR. Appended to the SEC Filings Excerpts.                                                                                                                      |
| <b>7 February</b>      | BUSINESS COMBINATION CONSUMMATED. Performance condition                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | SEC Proxy Statement, p. 340: stock-based compensation                                                                                                                                                                                                                                 |

| <b>Date</b>                        | <b>Event</b>                                                                                                                                                                                                                                                                                                                                | <b>Source</b>                                                                                                                |
|------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|
| <b>2024</b>                        | met. Founder Shares vest. Compensation expense recognised.                                                                                                                                                                                                                                                                                  | recognised at the date the performance conditions are met (i.e., upon consummation of a Business Combination).               |
| <b>8 February 2024</b>             | NEW COMPANY (Borealis Foods / BRLS) BEGINS TRADING ON NASDAQ. KZ photographed at the Nasdaq Exchange in New York at the public launch.                                                                                                                                                                                                      | Nasdaq listing records. Photograph in the public domain and exhibited to SEC whistleblower submission TCR 17284-760-060-567. |
| <b>19 February 2024</b>            | SWORN FORM ES2 BEFORE MACDONALD J — Final hearing in BV20D01752 commences. KZ signs Form ES2 on oath. Oxus entry: "Oxus Acquisition Corp — 50,000 shares — £0 — Non Matrimonial asset as subject to work and received on 6/2/2022." Counsel for KZ states in opening submissions that the Oxus shares "have no value", on his instructions. | Form ES2 sworn 19 February 2024; contemporaneous attendance notes of opening submissions; final hearing record BV20D01752.   |
| <b>22 February 2024</b>            | ORAL EVIDENCE ON OATH — Day 3 of trial. KZ testifies under oath that the Oxus shares are worth \$0. He states he has resigned his directorship. He makes no reference to the Closing Date of 7 February, the Nasdaq listing of 8 February, or the photograph taken at the listing.                                                          | Contemporaneous attendance notes, final hearing, BV20D01752.                                                                 |
| <b>26 February 2024</b>            | Counsel for KZ repeats in oral submissions that the Oxus shares have no value, on his instructions. Day 5 of trial.                                                                                                                                                                                                                         | Contemporaneous attendance notes, BV20D01752.                                                                                |
| <b>28 February 2024</b>            | Counsel for KZ repeats in closing submissions that the Oxus shares have no value, on his instructions. Final day of trial.                                                                                                                                                                                                                  | Contemporaneous attendance notes, BV20D01752.                                                                                |
| <b>29 Feb / 4 Mar / 6 Mar 2024</b> | Applicant's solicitors send three written requests for explanation regarding the Oxus shares. KZ directs his solicitors to ignore all three. No response is provided.                                                                                                                                                                       | Contemporaneous correspondence in NZ's possession.                                                                           |
| <b>6 March 2024</b>                | Counsel for KZ emails the court asking the judge not to read NZ's submission regarding the Oxus perjury.                                                                                                                                                                                                                                    | Email of 6 March 2024, contemporaneous record.                                                                               |
| <b>7 March 2024</b>                | D11 application filed with the High Court evidencing the Oxus merger and the false representations. Application not                                                                                                                                                                                                                         | D11 application of 7 March 2024.                                                                                             |

| Date                 | Event                                                                                                                                                                                                                                                                                                                                               | Source                                                         |
|----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------|
|                      | sealed.                                                                                                                                                                                                                                                                                                                                             |                                                                |
| <b>18 April 2024</b> | Final judgment handed down — [2024] EWFC 79 (111 paragraphs). Silent on Oxus perjury. Paragraph 5 dismisses the D11 in one sentence ("not proper to take into account") without reasons. Paragraph 76 treats Oxus as non-matrimonial in a bracketed clause stating the wife "does not appear to dispute" it — contradicted by the D11 NZ had filed. | [2024] EWFC 79, published on the National Archives and BAILII. |

## The 34-Day Contradiction

34 days | SEC filing: approximately \$565,000 → Sworn evidence: \$0 | Business Combination closed between these two dates.

## US regulatory engagement

SEC Whistleblower Program — TCR 17284-760-060-567 (filed 9 October 2024, under penalty of perjury). Oxus Acquisition Corp SEC CIK: 1852973 | Registration No. 333-273967 | Nasdaq ticker: BRLS.

Internal Revenue Service Criminal Investigation Division, New York Field Office — open investigation. Contact: Special Agent Robert McGarry (robert.mcgarry@ci.irs.gov | 917-620-8587).

## Legal framework

Perjury Act 1911 section 1: "If any person lawfully sworn as a witness or as an interpreter in a judicial proceeding wilfully makes a statement material in that proceeding, which he knows to be false or does not believe to be true, he shall be guilty of perjury."

Fraud Act 2006 sections 2 and 3: fraud by false representation; fraud by failing to disclose information where a duty to disclose is owed. The duty of full and frank disclosure in financial remedy proceedings is established in Livesey (formerly Jenkins) v Jenkins [1985] AC 424; NG v SG [2011] EWHC 3270; Moher v Moher [2019] EWCA Civ 1482.

GW v RW [2003] EWHC 611 (Mostyn J): a zero figure cannot lawfully be inserted for an asset assuredly realisable at some future date. Cited by counsel for the Applicant in opening and closing submissions at the final hearing in February 2024.

*Verification: SEC EDGAR — [www.sec.gov/cgi-bin/browse-edgar](http://www.sec.gov/cgi-bin/browse-edgar) — CIK 1852973*

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*Veritas Numquam Perit*